ITC INFOTECH

Business-friendly Solutions

STRICTLY PRIVATE & CONFIDENTIAL

Date: 29-Aug-2022

SIDDHARTH G S,
JAIN UNIVERISTY
BENGALURU

Sub: Appointment Letter

Dear SIDDHARTH,

We are pleased to offer you appointment as **Associate IT Consultant (Grade IS1)** in the Management Cadre of ITC Infotech India Limited (the "Company") on the following terms and conditions with effect from **27-Sep-2022**

Please note that you will be required to report to our office at Bangalore on the date of joining and your initial posting will be to **Coimbatore**

1. **This appointment is subject to**

   a. Your employment is subject to passing the pre-employment medical check-up, as per the policy of the Company. Decision of the Company's medical team in this regard will be final.

   b. You regularly attending the learning programs nominated by the Company; and you completing the assessments in a timely manner and as per the threshold completion criteria specified by the Company

   c. The Company receiving appropriate and satisfactory replies from your referees. The decision of the Company in this regard will be final.

   d. Your producing acceptable certified documentary evidence of your date of birth. This evidence must be a Birth Certificate or School Leaving Certificate, copy of your passport or an Affidavit attesting your date of birth and sworn by your father, mother or a close relative. This date once accepted will be used for all purposes in connection with your employment and no cognisance will be taken for any alterations in the future.

   e. Your producing acceptable certified documentary evidence of your academic and professional qualifications.

   f. The Company receiving appropriate and satisfactory report on your background check i.e. past employment and education details.

2. **Quality Certification Program Test**

   The Company places immense importance in ensuring that its employees have awareness and understanding of the quality processes and systems of the Company.

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In this regard, immediately on commencement of your services with the Company, you need to take a self-training on quality processes and systems of the Company and are expected to pass the "Quality Certification Test" (QCT) conducted by the Company. The training material to assist you in understanding the quality processes and systems are made available on Company's intranet.

You will be governed by the applicable Quality Certification Policy of the Company.

3. Separation from Service

In the event you decide to leave the services of the Company, you shall be required to give ninety (90) days' notice in writing to Company, of your intention to do so. Company reserves the discretion either to relieve you only at the end of the ninety (90) days' notice period or accept your resignation at any time prior to the expiry of the notice period. Company may terminate your service by giving you ninety (90) days' notice period or salary [Consolidated (Basic) salary] in lieu of notice period.

However, if at any time you commit a breach of this agreement or are found guilty of misconduct (including absence without leave, violation of the Company's rules, regulations, policies, and/or Code of Professional conduct), or conduct yourself in a manner calculated to bring the Company or its employees into disrepute, the Company reserves the right to forthwith discharge you from service without notice or salary in lieu of notice. You agree that if you are on unauthorised leave for a period of more than five [5] working days, it shall be deemed as a voluntary resignation of your service without notice and you shall be liable to pay the Company salary [Consolidated (Basic) salary] in lieu of notice period . For the purpose of this clause "unauthorised leave" means leave taken without the approval of your reporting manager.

At the time of separation from the Company, you will ensure that the assets, documents and intellectual properties of the Company in your custody and/or under your charge, including any power of attorney (s) issued by the Company in your favour are returned intact to the Company and you will forthwith vacate the Company accommodation, if any, provided to you.

4. Remuneration and other terms and conditions

Please refer to Annexure for the details as applicable to you.

Your job title and compensation have been discussed with you and we have mutually agreed upon the same.

You shall be governed by the remuneration and business facilities matrix applicable to managers of your grade in accordance with the Rules of the Company. Increments and remuneration review are at the sole discretion of the Management. Your remuneration is strictly confidential and should not be disclosed or discussed with others

In addition, you shall be entitled for the following as per the rules of the Company in force from time to time:

a. Increments

Annual Increments are payable at the sole discretion of the management of the company.

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In case you have joined the Company during April - December, you will be eligible for annual appraisal and salary review in the subsequent financial year. Pro-rated merit increase will be applicable for the grade / level / performance based on number of completed months during the appraisal cycle, as per the policy.

1. In case you have joined the Company during January - March, you will not be eligible for annual appraisal, performance linked pay and salary review for that period.

b). Leave/Leave Accumulation/Leave Encashment

1. You will be eligible for leave / leave accumulation / leave encashment as per the rules of the Company, for the time being in force or as may be in force from time to time. Leave encashment is done on last drawn 'Basic Salary'.

2. The Company may at any time, at its discretion, ask you to proceed on leave on such terms as may be decided by the Company.

5. Provident Fund

You will be eligible to join the Company's Provident Fund, from the date of your joining the company. In this connection you are requested to inform the Company whether you are presently or have been, a member of any Provident Fund Scheme.

6. Maternity

Women employees shall be provided maternity linked leave and benefits, as per the Maternity Benefits Act.

7. Retirement

As an employee, you will retire from the services of the Company on attaining the age of 58 years.

8. Transfer

You may from time to time be transferred in the service of the Company to any of the Company's Branches, Department and Divisions in India or abroad. You may also be transferred to the service of the Company's holding/subsidiary/associate/allied company(s) and the expression "the Company" used in this appointment letter will include any such company by which you may for the time being employed with or transferred to. The Company may anytime second / loan your services to its holding / subsidiary / associate / allied company, whether in India or abroad.

The Company may at any time send you on deputation in India or abroad.

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9. Confidentiality

a. You will not at any time without the written consent of the Managing Director of the Company disclose or divulge or make public except on legal obligations any proprietary information regarding the company's affairs or administration or research carried out whether the same may be confided to you or become known to you in the course of your service or otherwise.

b. In case you are required to sign a separate non-disclosure or similar agreement for any specific customer, you shall sign such agreement. In the event of any violation by you of such non-disclosure or similar agreement with the customer, the Company reserves the right to discharge you with immediate effect without notice or salary in lieu of notice and in such case, you shall have no claim against the Company. The Company's right to discharge you from the services of the Company shall be without prejudice to any other rights of the Company, including the right to recover damages from you

c. You will during your employment with the Company and at all times after you cease to be an employee of the Company maintain all proprietary and/or confidential information of the Company and the Company's clients (hereinafter referred to as Confidential Information), in strict confidence, especially those which the Company is under an obligation to keep confidential and generally all such Confidential Information relating to the Company's business or the business of any of the Company's client(s) , and not divulge to any third party any Confidential Information relating to the Company's business or the business of any of the Company's clients, acquired in the course of working with the Company at the Company's offices or at the workplace of the Company's clients, except with the written consent of the Company, or in accordance with an order of a court of competent jurisdiction and excluding information being disseminated with appropriate approvals for statutory requirements. Also training and access to new opportunities / technologies provided to you would result in know-how being made available to you and you are required to ensure that such know-how is kept confidential and shall not disclose or divulge such know-how except with the written consent of the Company, or in accordance with an order of a court of competent jurisdiction.

Provided that nothing in this Clauses b & c shall prohibit the seeking or procuring work or the doing of business not relating to or similar to the Company's business.

i. You are also required to provide a copy of the PAN (Permanent Account Number).

ii. The court at Bangalore shall enjoy the exclusive jurisdiction to entertain all disputes arising out of the terms and conditions of this agreement.

iii. If any provision contained in this agreement is construed to be invalid or unenforceable, the same shall not affect the validity /legality or enforceability of any other provision of this Agreement, which shall remain in full force and effect.

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10. Others

a. Your service with the Company will be governed by the Company Policies, including those contained in the Employee Handbook, published from time to time, as applicable at the time. Your duties will be laid down by the Management of the Company. The Company reserves the right to make changes to any of the Policies from time to time which will be updated on the Company's intranet.

b. If, during your employment with the Company, you make, invent, suggest or in any manner acquire any invention, process, programs, projects, Information Technology (IT) solutions or new technologies, relating to the business of the Company, services rendered or dealt in by the Company, the same will be deemed to have been made, invented, suggested or acquired on behalf of and for the benefit of the Company alone and the ownership of all intellectual property including the copyright and patents in all the works developed by you shall vest with the Company in perpetuity, and you will, at the request and cost of the Company, assign to the Company the full benefit of such invention, process programs, projects, IT solutions or new technologies and any copyrights, patents or other similar rights obtained by you in any country in respect thereof, but you will be entitled to be repaid by the Company any sums expended by you with the previous written consent of the Company in connection with any such invention, process, programs, projects, IT solutions or new technologies, relating to the business of or the services rendered by the Company. You will promptly communicate to the Company the full particulars of such invention, process, etc. and render all assistance /co-operation as may be required by the Company to secure the registration thereof in the name of the Company.

c. You are expected to comply with all legal provisions/requirements and the policies and procedures of the Company. If you violate any legal provision/requirement or any of the. Company's policies or procedures, the Company reserves the right to discharge you with immediate effect without notice or salary in lieu of notice, and in such case, you shall have no claim against the Company. In view of the nature of the Company's business, compliance with copyright and information technology/cyber laws is of importance in the course of your employment with the Company.

d. The Company is committed to providing a harassment free environment for its employees and has adopted a policy towards Prevention of Sexual Harassment at the workplace. You shall be governed by this policy and you will be required to adhere to the terms and conditions contained therein.

e. You are required to devote your full time and attention in the work assigned by the Company and you shall not take up any independent or individual assignment whether I) full time or part time, ii) in an advisory capacity or otherwise, or iii) as an honorary position or otherwise directly or indirectly, without the written consent of the Company

f. The Company's business may require you to travel abroad and it is in your interest to hold a valid passport at all times and submit an authenticated copy of the same for our records.

g. The Company may sponsor you from time to time for specialised training or certification in technical or management programs. You may also be required to undertake assignments overseas. In consideration of any such training, certification or assignment provided to you, you agree not to leave the service of

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the Company for a specified period of time after the completion of such training, certification or assignment. The specified period(s) of service will be decided by the Company on a case-to-case basis. In the event, of any violation of this condition by you, the Company will be entitled to recover from you, related expenses incurred towards such training, certification or assignment.

h. You shall not during the period of your service and after your separation, (regardless if this separation is voluntary or involuntary, or caused by breach of this agreement) take any action, which constitutes an interference with or a disruption of any of the company's business activities and /or would be in violation of the confidentiality obligations contained in this appointment letter or any non-disclosure agreements executed with any customer /client of the company during your service with the Company.

i. You agree and covenant that during the period of your service and for a period of one year after your separation (regardless if this separation is voluntary or involuntary, or caused by breach of this agreement) from the Company, except with the prior written consent from the Managing Director of the Company, directly or indirectly, either on your own behalf or on behalf of any other individual, firm or company including, without limitation:

   i. Seek to procure work from or do business with any individual, firm or company for whom the Company or its wholly owned subsidiaries / associate companies has, at any time during the twelve months immediately preceding the termination of your Contract provided services to; or,

   ii. Solicit or entice away any of such individuals, firms or companies whom you have called or have interacted with or with whom you deal with or had an occasion to deal with either directly or indirectly by reason of your employment with ITC Infotech or,

   iii. Solicit, entice and/or recruit any person who at the time of the termination of your employment or any time during the twelve months preceding such termination was engaged by the Company or any of its subsidiary/associate companies.

   iv. Assist, engage, participate or be concerned in any action, including providing of services or products such as or similar to those provided by the Company or its wholly owned subsidiaries / associate companies, that may divert the business or patronage of any customer from the Company or its wholly owned subsidiaries/associate companies, or otherwise damage or alienate the relationship between the Company or its wholly owned subsidiaries/associate companies and any such customer; Customer for the purpose of this subsection (iv) shall mean any business entity , firm, individual, or company, prospective or otherwise, with whom the Company or its wholly owned subsidiaries/associate companies, has/had relationship , with whom you deal with or had an occasion to deal with, directly or indirectly by reason of your employment with the Company.

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You will join the Company on **27-Sep-2022** and you are requested to report to **V Mamatha** at **ITC Infotech Bangalore.**
On reporting for duty, you will be required to complete necessary joining formalities, which will include:

i. Completion of joining formalities

ii. Submission of various documentary evidence as may be required by the Company

iii. Acceptance of Company's policies on
   a. Electronic mail
   b. Internet access
   c. Confidentiality

iv. Consent form for sharing Personal Information

Please ensure that on the date of your joining the Company you bring along with you all the necessary documents (in original and the copies) needed to facilitate the joining.

You are expected to familiarise yourself immediately after your joining the Company with all the Organisation Policies and systems as applicable at the time. These policies are available on Company's intranet and are also communicated from time to time

This appointment is made on the understanding that the information given by you to the Company is correct, true and complete. In case it is found at any time during the course of your employment that the information given by you to the Company is incorrect, untrue or incomplete, this appointment letter may be withdrawn and / or your employment with the Company may be terminated by the Company with immediate effect, without notice or salary in lieu thereof.

Any change in your marital status / residential address / acquisition of additional qualifications etc. should be intimated to Talent Management Department to enable us to keep your records up to date.

All communication sent to you by the management at your last given address shall be deemed to have been delivered to you at the correct address.

Please return the duplicate copy of this letter duly signed and dated, by **27-Sep-2022** as a token of your acceptance of the terms and conditions contained in this appointment letter.

Please note that if we do not receive your acceptance of the terms and conditions contained in this appointment letter by **27-Sep-2022**, our offer and this appointment letter shall stand automatically withdrawn.
Looking forward to a long and fruitful association with you. Congratulations and welcome to the world of ITC Infotech India Ltd.

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For **ITC Infotech India Limited**

Jaismon Emmanuel
Senior Vice President – Business Excellence

AUTHORIZATION / DECLARATION / ACKNOWLEDGEMENT BY THE CANDIDATE

AUTHORIZATION:

I, **SIDDHARTH G S** authorize ITC Infotech India Limited and its representatives to conduct a pre or post-employment background check of my past employment history and education. I understand that my employment with ITC Infotech India Limited is subject to a positive background check to the satisfaction of the Company.

SIGNATURE: DATE: 30/08/22

ACKNOWLEDGEMENT CLAUSE:

I accept the terms and conditions as set out above

SIGNATURE: DATE: 30/08/22

DECLARATION:

I am / I am not (strike-off whichever is not applicable) a relative of a Director or Key Managerial Personnel of the Company within the meaning of Section 2(77) of the Companies Act, 2013, read with Rule 3 of Companies (Specification of definition details) Rules, 2014.

I am / I am not (strike-off whichever is not applicable) a child / spouse of a manager currently working in the Company, its holding company, its subsidiary companies and associate companies.

I was / I have not been (strike-off whichever is not applicable) earlier employed by the Company, its holding / subsidiary / associate companies.

SIGNATURE: DATE: 30/08/22

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Annexure-Salary Structure

Components	Amount (Rs. Per Month)	Amount (Rs. Per Annum)
Consolidated Salary (Basic Salary)	27,100	3,25,200
House Rent Allowance	7,717	92,600
Supplementary Allowance	17,697	2,12,358
Meal Coupon - Refer EN1	1,933	23,200
Sub Total I	54,447	6,53,358
Leave Travel Allowance - Refer EN3	917	11,004
ITC Products & Services - Refer EN4	104	1,250
Provident Fund (Company Contribution)	1,800	21,600
Sub Total II	2,821	33,854
Bonus	3149	37788
TOTAL	60,417	7,25,000

Explanatory Notes (EN):

1. Meal Coupons - Coupons pertaining to a month will be distributed to the employees in the subsequent month (E.g. Rs.1100/- for the full month of November, will be distributed in the first week of December). However, in cases where there is no full month of service (on account of Secondment/Exit, the prorated value will be paid as part of salary). Meal Coupon if not opted, the same will be paid as supplementary allowance.
2. Group Accident Insurance Policy for Self for a sum insured of **Rs. 25,00,000** per annum. Group Medical Insurance Policy for Self, Spouse and children for a sum insured of **Rs. 5,00,000** per annum. Voluntary Parental Group Medical Insurance Policy for a sum insured up to **Rs. 3,00,000** on payment of applicable premium by employee.
3. Leave Travel Allowance of **Rs 11,004** per annum is paid as per company policy, prorated for the previous financial year along with April salary of the following financial year.
4. ITC Products & Services - This scheme provides you an opportunity to avail and enjoy ITC's world class products and services, governed by the following policy. You are eligible to claim reimbursement towards the purchase upto **Rs. 1,250** per annum, prorated in case where there is no full year of service. The reimbursement amounts are based on assumption that you are availing the benefit upto the entitlement as per the policy. If you do not avail the benefit, the amount mentioned is non-encashable or not carried forward to the next financial year.
5. Gratuity - You will also be eligible for Gratuity as per the Payment of Gratuity Act.
6. Bonus - You are entitled to the indicated Bonus amount as per the Payment of Bonus Act or the STI amount as per the policy, whichever is higher. In case you have joined the Company during January - March, you will be eligible for STI from the following accounting year.

All payments will be made as per company's policy, applicable income tax and statutory deductions.

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Annexure

Employee Consent Form

I **SIDDHARTH G S**, confirm that I am voluntarily sharing my Personal Information with ITC Infotech India Limited ('ITC Infotech') for the following purposes:

a. Validating my Curriculum Vitae and relating records including job application and conducting background verification checks and medical checks.
b. Employee related action including record keeping, processing payroll, compensation and benefits, visa and work permits; and
c. Any action required in the context of my employment with ITC Infotech.

I also agree and allow ITC Infotech to share my Personal Information to any third party/(s) or customers of ITC Infotech insofar as may be necessary or desirable in connection with my employment.

I agree to regularly update my Personal Information made available to ITC Infotech and confirm to the accuracy and correctness of the Personal Information furnished by me.

I have read and understood the definition of "Personal Information" as detailed in the Exhibit to this Annexure. For the purposes of this Consent Form, I understand that Personal Information shall include sensitive personal data or information detailed in the Exhibit to this Annexure.

SIGNATURE: DATE: 25/08/22

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Exhibit to Annexure

Definitions of "Personal Information" and "Sensitive Personal Data or Information" as contained in the Information Technology (Reasonable Security Practices and Procedures and Sensitive Personal Data or Information) Rules 2011, are as follows:

"Personal information" means any information that relates to a natural person, which, either directly or indirectly, in combination with other information available or likely to be available with a body corporate, is capable of identifying such person.

"Sensitive personal data or information" of a person means such personal information which consists of information relating to; —

i. password.
ii. financial information such as Bank account or credit card or debit card or other payment instrument details.
iii. physical, physiological and mental health condition.
iv. sexual orientation.
v. medical records and history.
vi. Biometric information.
vii. any detail relating to the above clauses as provided to body corporate for providing service; and
viii. any of the information received under above clauses by body corporate for processing, stored or processed under lawful contract or otherwise:

PROVIDED that, any information that is freely available or accessible in public domain or furnished under the Right to Information Act, 2005 or any other law for the time being in force shall not be regarded as sensitive personal data or information for the purposes of these rules.

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